

Grounds of Decision

STB 34 of 2025

The development known as MCST Plan 1980 is a 4 storey building at 33 Cavan Rd. There are altogether 4 lots in the development, one on each of the 4 levels. The applicant is the occupier of the ground level and the lot is used for a "wholesale trade of a variety of goods" and the respondent is the management corporation of the development

In this case the applicant filed an application for orders in relation to disputes on various matters between the parties. In the course of mediation, agreement was achieved on some of the matters such that there is no need for orders to be made. There was no agreement on two matters viz parking and the common staircase and directions were given for a hearing on the two matters.

In relation to parking, the respondent has on the common property in front of the development drawn and marked out 4 car park lots with dimensions which according to the applicant do not meet minimum dimensions prescribed in the Parking Places Rules. Previously there were 3 parking lots on the space where the 4 parking lots are now occupying and the 3 parking lots had been allotted for use by the occupiers of the other three lots in the development and the applicant had been prevented from using any one of the lots. Each of the current 4 car parking lots have been assigned by the respondent for use by each of the SPs/occupiers of the 4 lots in the development ie the respondent has without making a by law under s 33 of the BMSMA purported to confer exclusive use and enjoyment of one carpark lot to each of the 4 SPs/occupiers.

The applicant has applied for an order for the 3 lots to be reinstated and not be prevented from using the lots.

The respondent did not in its written submission attempt to submit that the allotting of one of 4 car park lots with dimensions that are not in compliance with the Parking Places Rules was in order and that the order applied for should be dismissed. In its written submissions the respondent informed that it was agreeable that the current 4 car parking lots should be

converted into 3 parking lots and made a proposal for the conferment of exclusive use by the applicant to one of the 3 car park lots and wanted the Board to order it to do the necessary for the implementation of its proposal.

The order sought by the respondent in its submissions was not an order that had been applied for in the application before the Board. The Board is in this case obliged to make decisions in accordance with the filed applications and cannot find that it to be in order that car park lots can be drawn with dimensions that are not in accordance with that Parking Place Rules and that individual lots can be used and enjoyed exclusively by a subsidiary proprietor without a by law made under s 33 of the BMSMA.

The common staircase connects the ground level to the flat roof at the top of the building. In addition to the flat roof the common staircase also provides access to the 3 lots above ground level. The applicant has, because of a metal gate at the ground level that has been locked by the respondent, been denied access to the staircase.

The applicant has applied for an order that the respondents remove the locked metal gate at the common property staircase and to be allowed unhindered access to the common staircase and the flat roof.

There was in the case no dispute that the common staircase and flat roof was common property and the respondent did not as in the case of the of the parking lots, attempt to submit that it was in order that the applicant could be prevented from accessing the common staircase and submit that the application should be dismissed. It was the contention of the respondent that there was no reason for the applicant to access to the staircase and flat roof to access its lot. In its written submission ^{the R's pos -} applied for the Board to make an order to allow it to make a by-law by way of a special resolution to provide for security measures for controlling and managing the staircase.

Whilst the Board cannot find fault in a proposal for a resolution to provide for security measures for controlling and managing the staircase - as long as this did not prevent the applicant from accessing the staircase and other common property, this was not an order that had been applied for in the application in this case. The order applied for was for the applicant to be

allowed access and the respondent has not shown that it can be allowed to deny access to the applicant.

Accordingly, it is ordered:

- i) It is ordered that parking lots in the development must be drawn with dimensions prescribed in the Parking Places Act and Rules and cannot without a bylaw under s 33 of the BMSMA be assigned for exclusive use by any subsidiary proprietor of a lot.
- ii) The respondent must allow the applicant access to the common staircase

We will hear parties on GST.